

SENATE No. 2114**The Commonwealth of Massachusetts**

PRESENTED BY:

Joanne M. Comerford*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a jail and prison construction moratorium.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/22/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>1/31/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/4/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/10/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/10/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/19/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>3/19/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/17/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/2/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/25/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/27/2026</i>

SENATE No. 2114

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 2114) of Joanne M. Comerford, Rebecca L. Rausch, Michael J. Barrett, Jason M. Lewis and other members of the General Court for legislation to establish a jail and prison construction moratorium. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2821 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a jail and prison construction moratorium.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 7C of the General Laws is hereby amended by adding the
2 following section:-

3 Section 73. (a) For the purposes of this section, the term “correctional facility” shall have
4 the same meaning as provided in section 1 of chapter 125.

5 (b) Notwithstanding any general or special law to the contrary, a state agency or public
6 agency shall not:

7 (i) study, plan, design, acquire, lease, search for sites, or construct new correctional
8 facilities or detention centers;

(ii) expand the capacity of an existing correctional facility or detention center beyond its current design or rated capacity;

(iii) convert any part of an existing or dormant correctional facility or detention center for the purpose of detention or incarceration, including to change or expand the populations incarcerated in that facility or center;

(iv) renovate an existing or dormant correctional facility or detention center beyond performing routine maintenance and improvements limited only to ensuring compliance with federal and state law including building, health, and fire codes; installing plumbing fixtures such as toilets, showers, sinks, doors, or locks; improving food service or health services or medical service units; improving heating and cooling systems; removing restrictive housing units or other security infrastructure; improving spaces for programming and education; provided that such improvements shall not increase a facility's bed capacity and must result in improved living conditions for incarcerated people;

(v) repair an existing or dormant correctional facility or detention center for the purposes of expanding the facility or center, or increasing its bed capacity.

SECTION 2. (a) For purposes of this section, the term "county jail and regional lockup facility" shall mean a facility operated by a county sheriff that, as of the effective date of this act, is used for all of the following: (i) the detention of convicted offenders; (ii) as a jail, as that term is described in section 4 of chapter 126 of the General Laws; and (iii) as a regional lockup facility utilized by more than 1 municipal law enforcement agency for the detention of arrestees.

(b) Notwithstanding clause (iii) of subsection (b) of section 73 of chapter 7C of the General Laws, in the event that a county jail and regional lockup facility is closed due to the

31 closure of a county jail, the county sheriff may transfer no more than 30 beds from the closed
32 facility to an existing county correctional facility, as that term is defined in section 1 of chapter
33 125 of the General Laws, within the same county.

34 SECTION 3. Section 73 of chapter 7C of the General Laws is hereby repealed.

35 SECTION 4. Section 2 of this act is hereby repealed.

36 SECTION 5. Sections 3 and 4 shall take effect 5 years after the effective date of this act.